

“EXHIBIT “C”

IN THE MATTER OF THE CLAIM OF

CHRIS PADILLA,

Against

The City of New York, NYC Police Department, Sergeant Juan Ferreira, Shield NO: 0469 of the 34th Precinct, P.O. John Bonhomme, Shield NO: 0633 of the 34th Precinct AND P.O. Paul Acosta, Shield NO: 107 of the 34th Precinct.

TO: The Office of the Comptroller
Of the City of New York
One Centre Street Suite 1225
New York, New York 10007

PLEASE TAKE NOTICE that the undersigned claimant(s) hereby makes(s) claim and demand against, the City of NY, as follows:

1. The name and post office of each claimant and claimant's attorney is:

GETZ & BRAVERMAN, P.C.
172 E. 161ST Street
Bronx, New York 10451

2. The nature of the claim:

See attached rider.

3. The time when, the place where and the manner in which the claim arose:

See attached rider.

4. The items of damage or injuries claimed are:

See attached rider.

The undersigned claimant(s) therefore present this claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, the claimant(s) intend to commence an action on this claim.

Dated: 1-2-19

Chris Padilla

STATE OF NEW YORK COUNTY OF Bronx

SS.

INDIVIDUAL VERIFICATION

Chris Padilla, being duly sworn, deposed and says; that (s)he is the claimant herein; that (s)he has read the foregoing notice of claim against the City of NY and knows the contents thereof, that the same is true to his (her) own knowledge, except as to matters therein stated to be alleged by information and belief, and that as to those matters, (s)he believes to be true.

Chris Padilla

Sworn to me this 5th
day of January, 2019

Arianna L. Walvin
Commissioner of Deeds
City of New York No. 3-7477
Certificate Filed in
Bronx County
Commission Expires 10-1-2019

RE: CHRIS PADILLA vs. THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT

1. The claim is to recover damages for false arrest, detention, loss of freedom and privileges sustained by reason of that which is set forth herein-below
2. The time when, the place where and the manner in which the claim arose:

The claim arose on June 21, 2018, around 4:00 p.m. on the corner of Vermiliya Avenue and West 211th Street, New York, New York in the County New York State of New York, when claimant was caused to be arrested, without probable cause, allegedly for possession of marijuana in the second degree and criminal sale of marijuana in the fourth degree. Claimant was arrested on June 21, 2018, by Sergeant Joan Ferreira, Shield No: 0469 of the 34th Precinct, P.O. John Bonhomme, Shield No: 0633 of the 34th Precinct and P.O. John Acosta, Shield No: 107 of the 34th Precinct and taken to the 34th Precinct , New York, NY and was released (2) days later. That said occurrence and the results thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT** their agents, servants, employees, licensees, designees and/or representatives in the ownership, operation, maintenance, management, supervision, charge and control of the aforesaid location and personnel employed thereat; in failing to conduct an investigation in a professional, proper and skillful manner so as to bring same to a correct and just conclusion; in causing, allowing and permitting Claimant to be wrongfully detained for approximately (2) two days without any justifiable cause and/or provocation; in exposing Claimant to an undue risk of harm and danger; in causing, allowing and permitting Claimant to be deprived of his freedom and accompanying privileges; in failing to act in a professional manner; in failing to be cognizant of Claimant's situation and take any action to correct same; in causing, allowing and permitting the claimant to be deprived of his freedom and privileges associated therewith; in causing, allowing and permitting the claimant to be wrongfully charged, detained and experience shame and degradation; in failing to adhere to commonly accepted practices, standards and/or guidelines in such cases made and provided; in failing to hire qualified personnel; in failing to properly and/or sufficiently train, instruct, teach, oversee, supervise, monitor and/or proctor their personnel, and in demonstrating indifference with a total willful disregard as to the safety and well-being of others. That there was no culpable conduct on the part of the claimant contributing thereto.

VIOLATION OF CIVIL RIGHTS pursuant to U.S.C.A. § 1981, 1983, 1985, in that claimant **CHRIS PADILLA** deprived of her rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United States of America and the State of New York.

3. The items of damage or injuries claimed are:

FALSE ARREST;

FALSE IMPRISONMENT;

MALICIOUS PROSECUTION;

VIOLATION OF THE CIVIL RIGHTS;

SHAME AND DEROGATION;

LOSS OF FREEDOM AND DETENTION;

INTERRUPTION AND DISRUPTION OF DAILY LIFESTYLE.

IN THE MATTER OF THE CLAIM OF

CHRIS PADILLA,

Against

The City of New York, NYC Police Department, Sergeant Joan Ferreira, Shield No. 0469 of the 34th Precinct, P.O. John Bonhomme, Shield No. 0633 of the 34th Precinct AND P.O. Paul Acosta, Shield No. 107 of the 34th Precinct.

TO: NYC POLICE DEPARTMENT
One Centre Street Suite 1225
New York, New York 10007

PLEASE TAKE NOTICE that the undersigned claimant(s) hereby makes(s) claim and demand against, NYC Police Department, as follows:

1. The name and post office of each claimant and claimant's attorney is:

GETZ & BRAVERMAN, P.C.
172 E. 161ST Street
Bronx, New York 10451

2. The nature of the claim:

See attached rider.

3. The time when, the place where and the manner in which the claim arose:

See attached rider.

4. The items of damage or injuries claimed are:

See attached rider.

The undersigned claimant(s) therefore present this claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, the claimant(s) intend to commence an action on this claim.

Dated: 1-2-19

STATE OF NEW YORK COUNTY OF Bronx

SS.

INDIVIDUAL VERIFICATION

Chris Padilla, being duly sworn, deposed and says; that (s)he is the claimant herein; that (s)he has read the foregoing notice of claim against the NYC Police Dept and knows the contents thereof, that the same is true to his (her) own knowledge, except as to matters therein stated to be alleged by information and belief, and that as to those matters, (s)he believes to be true.

Sworn to me this 2
day of January, 2019

Arianna L. Walvin
Commissioner of Deeds
City of New York No. 3-7477
Certificate Filed in
Bronx County
Commission Expires 10-1-2019

RE: CHRIS PADILLA vs. THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT

1. The claim is to recover damages for false arrest, detention, loss of freedom and privileges sustained by reason of that which is set forth herein-below

2. The time when, the place where and the manner in which the claim arose:

The claim arose on June 21, 2018, around 4:00 p.m. on the corner of Vermiliya Avenue and West 211th Street, New York, New York in the County New York State of New York, when claimant was caused to be arrested, without probable cause, allegedly for possession of marijuana in the second degree and criminal sale of marijuana in the fourth degree. Claimant was arrested on June 21, 2018, by Sergeant Joan Ferreira, Shield No: 0469 of the 34th Precinct, P.O. John Bonhomme, Shield No: 0633 of the 34th Precinct and P.O. John Acosta, Shield No: 107 of the 34th Precinct and taken to the 34th Precinct, New York, NY and was released (2) days later. That said occurrence and the results thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT** their agents, servants, employees, licensees, designees and/or representatives in the ownership, operation, maintenance, management, supervision, charge and control of the aforesaid location and personnel employed thereat; in failing to conduct an investigation in a professional, proper and skillful manner so as to bring same to a correct and just conclusion; in causing, allowing and permitting Claimant to be wrongfully detained for approximately (2) two days without any justifiable cause and/or provocation; in exposing Claimant to an undue risk of harm and danger; in causing, allowing and permitting Claimant to be deprived of his freedom and accompanying privileges; in failing to act in a professional manner; in failing to be cognizant of Claimant's situation and take any action to correct same; in causing, allowing and permitting the claimant to be deprived of his freedom and privileges associated therewith; in causing, allowing and permitting the claimant to be wrongfully charged, detained and experience shame and degradation; in failing to adhere to commonly accepted practices, standards and/or guidelines in such cases made and provided; in failing to hire qualified personnel; in failing to properly and/or sufficiently train, instruct, teach, oversee, supervise, monitor and/or proctor their personnel, and in demonstrating indifference with a total willful disregard as to the safety and well-being of others. That there was no culpable conduct on the part of the claimant contributing thereto.

VIOLATION OF CIVIL RIGHTS pursuant to U.S.C.A. § 1981, 1983, 1985, in that claimant **CHRIS PADILLA** deprived of her rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United States of America and the State of New York.

3. The items of damage or injuries claimed are:

FALSE ARREST;

FALSE IMPRISONMENT;

MALICIOUS PROSECUTION;

VIOLATION OF THE CIVIL RIGHTS;

SHAME AND DEROGATION;

LOSS OF FREEDOM AND DETENTION;

